

REQUEST FOR REPAYMENT OF A BENEFIT

A CDB clawback taken when you were not receiving the CDB is an underpayment AISH must repay

Who this form is for: AISH recipients who had the \$200 Canada Disability Benefit (CDB) amount deducted from their AISH benefit when they were **not receiving the CDB in that amount** — for example, the deduction started before the federal determination came in, or you were later denied the DTC or the CDB, or more was taken than the CDB you received. When AISH pays you less than you were eligible for, that is an **underpayment**, and the law requires AISH to repay it in full.

Where to send it: your local AISH office (pull the current address from alberta.ca/contact-aish). Keep a copy. If you have already appealed or want to, you may also send a copy to the Appeals Secretariat.

Date: **AISH file number:**

To:

From (your full name):

Re: Request for repayment of a Canada Disability Benefit clawback that resulted in an underpayment of my AISH benefit

THE SITUATION

The CDB amount was deducted from my AISH benefit as follows (fill in what you know — AISH can confirm exact figures):

Amount deducted as CDB clawback: \$ per month, starting (month/year):

During the period this amount was deducted, the following was true (check all that apply):

- ☐ I was **not yet receiving the CDB** — the federal determination had not been issued.
- ☐ I was **denied the Disability Tax Credit (DTC)**, so I could not receive the CDB.
- ☐ I was **denied the CDB**.
- ☐ More was deducted than the CDB I received (I was **clawed back too much**).

Total amount I believe was deducted in error: \$ (or write “to be determined by AISH”)

THE LEGAL GROUNDS

My request rests on AISH's own legislation, which makes repayment of an underpayment mandatory:

Assured Income for the Severely Handicapped Act, section 8 provides that where a director determines there has been an underpayment of a benefit, the director may address the underpayment in accordance with the regulations.

AISH General Regulation, section 10(1) provides that if a director determines a client was underpaid a benefit, **the director must pay the outstanding amount to the client.** The word is "must," not "may."

AISH policy confirms an underpayment arises when a client receives less than they were eligible for — including as a result of administrative error — and that AISH assesses the underpayment for the **entire** period and reimburses the **full** amount.

Because the CDB amount was deducted from my AISH benefit during a period when I was not receiving the CDB in that amount, my AISH benefit was reduced below what I was eligible to receive. That reduction is an underpayment. Under section 10(1) of the General Regulation, AISH must repay it in full.

WHAT I AM REQUESTING

1. That AISH **assess the underpayment** created by deducting the CDB amount during the period(s) above.
2. That AISH provide me, **in writing, the detailed calculation** of that underpayment.
3. That AISH **repay the full amount** of the underpayment for the entire period, as required by section 8 of the Act and section 10(1) of the General Regulation.
4. That AISH **confirm my corrected ongoing benefit amount** going forward, so the deduction is only applied for periods in which I receive the CDB.

IN MY OWN WORDS

Here is what happened, in my own words (dates, what I was told, and how this affected me):

Maximum: 1200 characters

I ask that this be resolved in my favour and that the full underpayment be repaid. I am available to provide any further information required.

Signature:

Date:

Printed name:

Phone or email:

This form contains general information, not legal advice. The legislative provisions cited are current as of the AISH General Regulation in force now; a submission made before July 2, 2026 is governed by that framework.